



# United States Patent and Trademark Office

Office of the Chief Financial Officer  
Form USPTO-OP-026.v7.0 (1/2026)

## SOLE SOURCE JUSTIFICATION (SSJ) (35 U.S.C. 2(b)(4)(A), PTAG 6.1.1, PTAM 6.1)

### SECTION I. COMPLETED BY THE PROGRAM OFFICE

|                                                                                         |            |                                                 |  |
|-----------------------------------------------------------------------------------------|------------|-------------------------------------------------|--|
| <b>Program Office:</b> Enterprise Infrastructure Product Line                           |            | <b>Program Office POC:</b> [REDACTED]           |  |
| <b>Title of Procurement:</b> Enterprise Cloud Modernization                             |            | <b>Acquisition Package #:</b> ACQ-26-0753       |  |
| <b>Estimated Value (including options)</b>                                              | [REDACTED] |                                                 |  |
| <b>Contracting Officer:</b> Donald Nusbaum                                              |            | <b>Contracting Officer Phone:</b> 571-270-7143  |  |
| <b>Vendor Name (if applicable):</b> General Dynamics Information Technology, Inc (GDIT) |            | <b>Contract or Order # (if applicable):</b> N/A |  |

#### 1. Description of the Action

The USPTO intends to award a contract to GDIT for Enterprise Cloud Modernization (ECM) cloud usage and cloud professional services on a sole source basis. The total anticipated value of the contract is [REDACTED]. The anticipated period of performance is a one-year base period and one (1) one-year option period. The anticipated procurement contract will be a Time -and- Materials contract type.

#### 2. Description of the Supplies/Services

The ECM is a professional services requirement to support the Infrastructure/Hosting - Cloud product, with public cloud enhancements for effective cost savings, streamlined efforts and a purposeful investment.

USPTO has a current initiative to transition from a hybrid cloud strategy (on-prem/cloud) to a cloud first strategy by migrating seven (7) petabytes of data from on-prem to the cloud by June 30, 2027. This ECM effort will allow the ECM Delivery Team to assess, migrate, develop and deploy to the cloud using FEDRAMP approved commercial cloud services through a single vendor with established relationships (Authorized Reseller) with [REDACTED].

[REDACTED] This effort will also provide, but is not limited to, the following capabilities and enhancements to the Hybrid Multi-Cloud, Cloud Support Capability, and Architecture Principles.

The table below provides an overview of the estimated ECM price for a one-year base period and one (1) one-year option period:

| Base Period: 10/1/2026 - 9/30/2027       |            |
|------------------------------------------|------------|
| Description                              | Estimate   |
| Cloud Support Labor                      | [REDACTED] |
| *Optional Labor (2/1/2027 – 9/30/2027)   | [REDACTED] |
| Cloud Usage ([REDACTED])                 | [REDACTED] |
| Base Period Total:                       | [REDACTED] |
| Option Period One: 10/1/2027 - 9/30/2028 |            |
| Description                              | Estimate   |
| Cloud Support Labor                      | [REDACTED] |
| Optional Labor                           | [REDACTED] |



# United States Patent and Trademark Office

Office of the Chief Financial Officer

Form USPTO-OP-026.v7.0 (1/2026)

|                            |            |            |
|----------------------------|------------|------------|
| Cloud Usage ( [REDACTED] ) | [REDACTED] | [REDACTED] |
| Option Period One Total:   | [REDACTED] | [REDACTED] |
| Grand Total:               | [REDACTED] | [REDACTED] |
| [REDACTED]                 |            |            |

### 3. Unique Vendor Qualifications or Nature of the Acquisition

Under 35 USC§122, the USPTO is required to maintain the confidentiality of patent applications. USPTO's migration from on premises storage to in the cloud storage helps USPTO maintain the highest level of protection for the confidentiality of patent application in storage. The cloud providers can secure and maintain at the highest level of cyber security the confidential information at a greater level of up-to-date and higher levels than USPTO can with on premises storage at USPTO. GDIT has been an integral part of USPTO securely transitioning from on-premise to in cloud storage.

USPTO utilized General Service Administration's (GSA) Alliant 2 Government Wide Acquisition Contract (GWAC) and competitively awarded task order (TO) 1333BJ21F00280055 to GDIT on September 27, 2021, in order to provide ECM cloud usage and cloud support services for one (1) base year period and four (4) one-year option periods.

[REDACTED]

[REDACTED]

[REDACTED] Cloud networking is inherently part of cloud architecture, supported by the same engineering teams, delivered through cloud-native services, and governed through unified security and automation frameworks. This approach eliminates redundancy, aligns with industry standards, and provide more accurate and efficient scope for delivery.

GDIT, provides end-to-end stewardship of USPTO's multi-cloud platform, which supports more than 400 tenants and constitutes the foundational infrastructure for the agency's enterprise-wide cloud migration program. GDIT's engineering practices, operational processes, and sustained delivery quality have enabled USPTO to migrate over 50 percent of its systems to the cloud, positioning the agency to meet its modernization objectives. GDIT possesses deep familiarity with USPTO's standards, procedures, stakeholder community, and customer environment. Over the period of performance of the current task order, GDIT has established strong collaborative relationships with USPTO's system integrators, infrastructure service providers and supply-chain partners. These mature working relationships enable efficient coordination, rapid issue resolution, and consistent alignment across modernization efforts. Given the platform's centrality to mission-critical operations and its role as the technical backbone of ongoing transformation efforts, a transition to a new vendor prior to the June 30, 2027 cloud migration deadline would introduce significant operational, technical and schedule risk, potentially jeopardizing service continuity and the agency's ability to achieve its migration milestones.





# United States Patent and Trademark Office

Office of the Chief Financial Officer

Form USPTO-OP-026.v7.0 (1/2026)

## 4. Other Facts Supporting the Justification

[REDACTED]

This outcome reflects GDIT's technical expertise and their [REDACTED] that directly benefit the USPTO. GDIT's demonstrated their [REDACTED] partnering closely with USPTO's [REDACTED] to deliver the full IT lab migration to the cloud in just four months – an achievement that far exceeded the original two-year delivery estimate.

Additionally, the USPTO has a current initiative to transition from a hybrid cloud strategy (on-prem/cloud) to a cloud first strategy. USPTO is aggressively reducing on-prem storage by migrating seven (7) petabytes of data from on-prem to the cloud by June 30, 2027. [REDACTED]

From a total cost of ownership standpoint, an ECM bridge contract provides USPTO a better investment outcome as the increase in cloud usage will result in significant price reductions in other infrastructure areas. The estimate below indicates USPTO will achieve a cost saving once our IT systems are migrated to the cloud:

| Infrastructure Contracts (Cost in Millions)  | 2025       | 2026 | 2027 | 2028 |
|----------------------------------------------|------------|------|------|------|
| Data Center Hosting ([REDACTED])             | [REDACTED] |      |      |      |
| Storage ([REDACTED])                         |            |      |      |      |
| RPP Infra Support ([REDACTED])               |            |      |      |      |
| Software Licenses ([REDACTED])               |            |      |      |      |
| Network Engineering ([REDACTED])             |            |      |      |      |
| Cloud ECM ([REDACTED])                       |            |      |      |      |
| Network Engineering + Cloud ECM ([REDACTED]) |            |      |      |      |
| <b>Total Infrastructure Cost</b>             |            |      |      |      |

With a successful cloud migration by June 30, 2027, USPTO can effectively reduce IT operational costs in areas including:

- Storage as a service contract with Peraton ([REDACTED]), can be eliminated.
- Data center hosting can be consolidated to reduce a hosting cost of [REDACTED] a year.
- Infrastructure support contract on platform, database, and delivery services can be reduced from current [REDACTED] a year to potential [REDACTED] range.
- Cloud allows [REDACTED] and reduction, estimated another [REDACTED] saving.



# United States Patent and Trademark Office

Office of the Chief Financial Officer

Form USPTO-OP-026.v7.0 (1/2026)

Enterprise cloud modernization is expected to generate significant and measurable cost savings across the IT organization. These savings result from the retirement of legacy infrastructure, the reduction of manual operational workloads, reduced physical data center footprint, improved utilization of computing resources, reduced licensing overhead, and more efficient security and compliance operations. The benefits demonstrate the long-term financial value of modernization and establish a clear return on investment for the transition to cloud-based services.

## 5. Listing of sources that expressed interest in writing

Notice of Intent to Sole Source utilizing USPTO PTAG 6.1.1 will be issued posted in accordance with PTAM Part 5.103 and PTAG Part 5.

## SECTION II. COLLABORATION BETWEEN THE PROGRAM OFFICE AND OP

## 6. Adjudicated Type of SSJ (select from the drop-down box) / o PTAG 6.1.1 Sole Source (Sole source procurement using PTAG 6.1.1 Alternate Competition Method and 35 U.S.C. 2(b)(4)(A) (Patent and Trademark Office Efficiency Act)) /

## 7. Statutory Authority

This action is being executed for Sole Source used in accordance with the authority of 35 U.S.C. 2(b)(4)(A) of the Patent and Trademark Office Efficiency Act (PTOEA). The USPTO may disregard some competition and justification requirements prescribed in the FAR, the Patent and Trademark Acquisition Guide (PTAG) and Patent and Trademark Acquisition Manual (PTAM). The USPTO is specifically exempted from 41 U.S. Code § 3301 - Full and open competition. As a result of its exemptions described in Part 1 above, the USPTO is not required to meet the test of “full and open competition” as defined in FAR Part 6. Under PTAG, Part 5 Competition and PTAM, the USPTO will endeavor to conduct its procurements on a competitive basis under the FAR when it is reasonable to do so. However, when the particular circumstances warrant it, USPTO may conduct procurements under PTAG on a non-competitive basis when it is in the best interest of the agency to do so. The Contracting Officer, herein, documents and explains the decisions regarding the noncompetitive aspect of this procurement. This sole source justification provides explanation and justification.

## 8. Efforts to solicit as many potential sources as possible

Posting a solicitation to allow other interested vendors to compete for ECM cloud usage and cloud support services may provide better pricing and more innovative solutions migrating USPTO data from on-prem to the cloud. However, a competition for ECM cloud usage and cloud support services during Fiscal Year 2026 will cause delays with the ECM Delivery Team meeting the aggressive timeline of the USPTO initiative to migrate seven (7) petabytes of data from on-prem to the cloud by June 30, 2027. Any benefits from achieving a more innovative solution or better pricing for ECM cloud usage and cloud support services are outweighed by the possible delay of the mission-critical USPTO initiative to migrate USPTO data from on-prem to the cloud by June 30, 2027.

## 9. Market Research





# United States Patent and Trademark Office

Office of the Chief Financial Officer

Form USPTO-OP-026.v7.0 (1/2026)

## 10. Actions to remove or overcome barriers to competition

Under Sole Source Justification (SSJ) Notice ID 1333BJ25R00280007 titled Storage Infrastructure Managed Services (SIMS) posted through [www.sam.gov](http://www.sam.gov) on October 25, 2024, under section 8 it states, "Award of the follow-on ECM contract is projected for the 2<sup>nd</sup> half of FY2026." However, USPTO's current initiative to transition from a hybrid cloud strategy (on-prem/cloud) to a cloud first strategy by migrating seven (7) petabytes of data from on-prem to the cloud by June 30, 2027 requires a two (2) year bridge contract prior to the follow-on ECM recompetes (Reference section 4 of this sole source justification).

USPTO plans to initiate market research in FY 2027 for the follow-on ECM contract. USPTO intends to award a follow-on ECM contract that will require a one (1) year base period with four (4) one-year option periods. Award of the follow-on ECM contract is projected in the 3<sup>rd</sup> quarter of FY 2028.

### SECTION III. COMPLETED BY OP

## 11. Determination by the Contracting Officer that estimated cost will be fair and reasonable.

The Contracting Officer will finalize a price reasonableness determination, appropriate to the contract type, prior to contract award. Detailed documentation and justification of price reasonableness will be provided in the Acquisition Form Documentation (AFD) to be prepared upon completion of negotiations.

### SECTION IV. REVIEW AND APPROVAL

#### 1. Technical Certification

By signature below, the Technical Representative certifies that the supporting data necessary to form the basis for this justification is accurate and complete to the best of their knowledge and belief. Furthermore, the Technical Representative certifies that the justification has been adjudicated by the Program Office and OP.

[Redacted Signature]

Technical Representative Digital Signature

#### 2. Contracting Officer's Certification

By signature below, the ordering activity Contracting Officer certifies that this justification is accurate and complete to the best of their knowledge and belief.

Donald Nusbaum

Digitally signed by Donald Nusbaum  
Date: 2026.04.09 15:37:26 -04'00'

Contracting Officer's Digital Signature

#### 3. Office of General Law (OGL) Counsel (required for actions valued at >\$2M)

N/A ☐

By signature below, the ordering activity OGL Counsel deems this justification legally sufficient.

[Redacted Signature]

Office of General Law Counsel's Digital Signature



# United States Patent and Trademark Office

Office of the Chief Financial Officer

Form USPTO-OP-026.v7.0 (1/2026)

4. **Level above Review (LAR) (see PTAM 6.1 for definition)** (required for actions at all dollar values except when LAR serves in another review/approval role)

N/A ☐

By signature below, the ordering activity LAR certifies that this justification is accurate and complete to the best of their knowledge and belief.

[Redacted Signature]

Level Above Review's Digital Signature

5. **Competition Advocate Approval:** Approval (required for actions valued at >\$2M to <\$10M)/Concurrence (required for actions valued at or above \$10M)

N/A ☐

By signature below, the Competition Advocate certifies that they have reviewed this justification and has determined that sufficient facts exist to support the justification.

[Redacted Signature]

Competition Advocate Digital Signature

6. **Bureau Procurement Official (BPO)/ Director of OP (or Designee) Approval:** Approval (required for actions valued at  $\geq$ \$10M to  $\leq$ \$20M)/Concurrence at >\$20M)

N/A ☐

By signature below, the ordering activity BPO/Director of OP certifies that this justification is accurate and complete to the best of their knowledge and belief.

[Redacted Signature]

BPO/Director of OP (or Designee) Digital Signature

7. **Head of the Contracting Activity (HCA) (or Designee) Approval:** Approval (required for actions valued >\$20M)

N/A ☐

By signature below, the HCA certifies that they have reviewed this justification and has determined that sufficient facts exist to support the justification.

[Redacted Signature]

HCA (or Designee) Digital Signature



# United States Patent and Trademark Office

*Office of the Chief Financial Officer*

Form USPTO-OP-026.v7.0 (1/2026)

## Section V. Attachments [As Required]

